



West Riding County Council (General Powers) Act 1964

CHAPTER xxxix

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ELIZABETH II



1964 CHAPTER xxxix

An Act to confer further powers on the West Riding County Council and on local authorities in the administrative county of the West Riding of Yorkshire in relation to industry, lands and highways and the local government, improvement, health and finances of the county; and for other purposes. [31st July 1964]

WHEREAS it is expedient that further and better provision should be made with reference to industry, lands and highways and for the local government, improvement, health and finances of the administrative county of the West Riding of Yorkshire and that the powers of the county council of that administrative county (hereinafter called "the Council") and of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the Council have complied with the requirements of Part XIII of the Local Government Act, 1933:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the West Riding County Council (General Powers) Act 1964.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Highways.

Part IV.—Public safety.

Part V.—Cultural activities.

Part VI.—Finance.

Part VII.—Miscellaneous.

Part VIII.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 294 and 295 of the Act of 1959 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“ Act of 1933 ” means the Local Government Act, 1933;

“ Act of 1936 ” means the Public Health Act, 1936;

“ Act of 1959 ” means the Highways Act, 1959;

“ appointed day ” has the meaning assigned to that expression by section 5 (The appointed day) of this Act;

“ authorised officer ” has the same meaning as in section 343 of the Act of 1936;

“ burial authority ” has the same meaning as in section 11 of the Burial Act, 1900;

“ Council ” means the county council of the county;

“ county ” means the administrative county of the West Riding of Yorkshire;

“ county fund ” means the county fund of the county;

“ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;

“ district ” means a borough or an urban or rural district in the county;

“ fire authority ” has the same meaning as in section 38 of the Fire Services Act, 1947;

“ highway authority ” means—

(a) in the case of a trunk road, the Minister of Transport or, with his consent, the authority who are for the time being acting as his agent under the Act of 1959 with respect to that trunk road;

(b) in the case of a county road in the county, except a claimed road, and in the case of any other highway for the time being maintained by the Council, the Council; and

(c) in the case of any other highway, the local authority for the district in which the highway is situate;

“ house ” has the same meaning as in section 343 of the Act of 1936;

“ Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Lands Tribunal Act, 1949, and by the Land Compensation Act, 1961;

“ local authority ” means the council of a district;

“ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act, 1952;

“ Minister ” means the Minister of Housing and Local Government;

“ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946;

“ officer ” includes servant;

“ parish council ” means the parish council of a rural parish in the county or where there is no parish council the parish meeting of such parish;

PART I
—cont.

“ police authority ” means, in relation to a county, the standing joint committee for that county, and in relation to a county borough, the watch committee;

“ rural district ” means a rural district in the county;

“ rural district council ” means the council of a rural district;

“ statutory water undertakers ” has the same meaning as in the provisions of the Water Act, 1945, other than those contained in Part II of that Act;

“ verge ” includes land situate between two carriageways and any part of a street which is not a carriageway, footway or cycle track;

“ voluntary organisation ” means any organisation not carried on for profit not being an organisation carried on by a public authority or by any local authority as defined in section 295 of the Act of 1959.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

Incorporation
of Lands
Clauses Acts.

4. The Lands Clauses Acts, except sections 127 to 132 and 150 and 151 of the Lands Clauses Consolidation Act, 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act), are hereby incorporated with and form part of this Act:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act, 1845, shall be sufficient without the addition of the sureties mentioned in that section.

The appointed
day.

5.—(1) In this Act the expression “ the appointed day ” means such day as may be fixed by resolution of a local authority subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The local authority shall cause to be published in a local newspaper circulating in the district notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

- (b) of the general effect of the provisions of this Act coming into operation as from that day;

PART I
—cont.

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

PART II

LANDS

6.—(1) The Council may purchase by agreement and (in any Acquisition case where the Council are unable to acquire land by agreement of land for on terms which in their opinion are reasonable) may be authorised development by means of an order made by the Council and submitted to the Minister and confirmed by him to purchase compulsorily land in any district to which this section applies for the purpose of—

- (a) development by the erection of any building or the construction or carrying out of works on land for the benefit or improvement of that district; or
- (b) facilitating the provision of premises for occupation by any undertaking carried on or to be carried on there or for otherwise meeting the requirements of such undertaking (including the requirements arising from the needs of persons employed or to be employed therein).

(2) The Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) In this section the expression “undertaking” means any trade or business, or any other activity providing employment.

(4) This section applies to all districts other than the rural districts of Bowland, Nidderdale, Ripon and Pateley Bridge, Sedbergh, Settle, Skipton and Wharfedale.

PART II
—*cont.*Disposal of
land.

7. Any land acquired under section 6 (Acquisition of land for development) of this Act may be disposed of under section 165 of the Act of 1933 as if it were land which was not required for the purpose for which it was acquired.

Power to
reinstate
owners or
occupiers of
property.

8. The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired by the Council under this Act with respect to his reinstatement elsewhere and any such agreement may provide for the exchange of land, and for that purpose the Council may pay or receive money for equality of exchange.

Duration of
section 6
of this Act.

9.—(1) Subject to the provisions of subsection (2) of this section, the provisions of section 6 (Acquisition of land for development) of this Act shall continue in force until 31st December, 1969.

(2) (a) The Minister may on the application of the Council by order extend the period referred to in subsection (1) of this section until 31st December, 1974.

(b) An order under this subsection shall be made by statutory instrument and contain such supplemental or incidental provisions as appear to the Minister to be expedient.

(c) No order under this subsection shall have effect until approved by resolution of each House of Parliament.

PART III

HIGHWAYS

Trees, grass
verges and
gardens.

10.—(1) Subject to the provisions of this section the Council or a local authority shall have power, in any street vested in them, or on any land acquired by them for the purpose of the construction or improvement of any such street, or for preventing the erection of buildings detrimental to the view from the street—

(a) to plant trees or shrubs or place containers in which to grow trees or shrubs;

(b) to attach containers for plants to posts or standards provided by the Council or local authority or, with the consent of the owner thereof, to any other posts or standards;

(c) to plant flowers and other vegetation on or between any pillars or walls provided by the Council or local authority;

(d) to lay out grass verges or gardens;

Order made by the Minister of Housing and Local Government, laid before Parliament under the West Riding County Council (General Powers) Act 1964, S.9(2)(c), for approval by resolution of each House of Parliament.

STATUTORY INSTRUMENTS

1969 No.

ACQUISITION OF LAND

**The West Riding County Council (General Powers) Act 1964
(Extension of Operation) Order 1969**

Made - - - 6th November 1969

Laid before Parliament 14th November 1969

Coming into Operation 30th December 1969

The Minister of Housing and Local Government, on the application of the West Riding County Council, in exercise of his powers under section 9(2) of the West Riding County Council (General Powers) Act 1964(a), and of all other powers enabling him in that behalf, hereby orders as follows :—

1. This order may be cited as the West Riding County Council (General Powers) Act 1964 (Extension of Operation) Order 1969, and shall come into operation on 30th December 1969.

2. Section 6 (acquisition of land for development) of the West Riding County Council (General Powers) Act 1964, which section would, but for this order, cease to have effect after 31st December 1969, shall continue in force until 31st December 1974.

Given under the official seal of the Minister of Housing and Local Government on 6th November 1969.

(L.S.)

Anthony Greenwood,
Minister of Housing and Local Government.

(a) 1964 c. xxxix.

EXPLANATORY NOTE

(This Note is not part of the Order.)

Section 6 of the West Riding County Council (General Powers) Act 1964 empowered the West Riding County Council to acquire land in certain districts of the county for development for the benefit or improvement of those districts, or for providing premises to be occupied by undertakings providing employment there. Under section 9 of the Act, section 6 is to continue in force until 31st December 1969, but the Minister of Housing and Local Government may extend that period until 31st December 1974 by an order requiring approval by resolution of each House of Parliament.

This order extends the period of operation of section 6 of the Act until 31st December 1974.

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- (e) to provide guards or fences, and otherwise do anything expedient, for the maintenance or protection of such trees, shrubs, containers, flowers, vegetation, grass verges or gardens;
- (f) to cut down any such tree or shrub, to remove any such container, guard, fence, flowers or vegetation, and to abolish any such grass verge or garden, or enlarge or diminish the area thereof;
- (g) by notice to prohibit persons from entering upon, or causing or permitting horses, cattle or vehicles to enter upon, any grass verge laid out under this section and maintained in an ornamental condition or mown, or any such garden so laid out;
- (h) by notice to prohibit the playing of any game on any such grass verge as aforesaid which is likely to cause damage thereto.

(2) Any such notice as is referred to in paragraph (g) or paragraph (h) of the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge or garden to which it relates; and if any person contravenes a notice so posted (except, in relation to a notice referred to in the said paragraph (g), in a case of emergency) he shall be liable to a fine not exceeding five pounds:

Provided that a person who is for the time being in charge of cattle which have entered upon any such grass verge or garden as is mentioned in paragraph (g) of subsection (1) of this section shall not be convicted of contravening such a notice as aforesaid unless it is shown to the satisfaction of the court that such person either—

- (a) deliberately drove such cattle to the intent that they should enter upon any such grass verge or garden as aforesaid; or
- (b) knowing that such cattle had entered upon any such grass verge or garden as aforesaid failed to take such steps to remove them from the said grass verge or garden as were readily and reasonably practicable; or
- (c) failed to exercise such reasonable care and control of the said cattle whilst passing along the road adjacent to any such grass verge or garden as aforesaid as he is able to exercise in the ordinary course of farming operations having regard to all the circumstances of the case.

(3) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street

PART III
—cont.

(4) Section 82 of the Act of 1959 shall cease to apply to highways vested in the Council or a local authority or to any such land as is referred to in subsection (1) of this section; and anything done by the Council or a local authority or a parish council under that section or under section 1 of the Roads Improvement Act, 1925, with respect to such highways or land before the passing of this Act shall be deemed to have been done under this section.

(5) Nothing in this section shall affect the duty of the Council or a local authority to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(6) A local authority may exercise the powers conferred by this section in a street, being a county road, notwithstanding that the street is not vested in the local authority:

Provided that where a local authority are not the highway authority they shall not exercise the said powers except with the consent of the Council.

(7) Subject to the restrictions for the time being imposed by any enactment on their expenditure, a parish council may, with the consent of the highway authority, exercise the powers conferred by this section with respect to any highway in the parish maintainable at the public expense.

(8) (a) Where the Council or a local authority carry out works under any enactment relating to private street works, they may, with the consent of the owners of premises fronting, adjoining or abutting on the part of the street in which the works are carried out, exercise the powers conferred by this section in that part; and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

(b) The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

Prohibition
of vehicles
on grass
verges.

11.—(1) The Council or a local authority may by notice prohibit persons from driving or permitting or causing to be driven any mechanically propelled vehicle upon any grass verge laid out in connection with a footway in any street and maintained in an ornamental condition or mown:

Provided that any such notice shall not apply to—

- (a) the owner or occupier of or any person residing in any premises fronting or abutting on any such street driving or permitting or causing to be driven any vehicle to or from those premises; or

- (b) the temporary crossing of a grass verge during building operations if means satisfactory to the local authority and, where the local authority are not the highway authority, the highway authority be taken to protect such grass verge from injury and for the convenience of pedestrians; or
- (c) the temporary use of any vehicle on a grass verge by statutory undertakers in the exercise of the rights of such undertakers with respect to any apparatus (including the placing of apparatus).

(2) Any such notice as is referred to in the preceding subsection shall be conspicuously posted on or in proximity to the grass verge to which it relates and if any person contravenes a notice so posted (except in a case of emergency) he shall be liable for every such offence to a fine not exceeding twenty shillings in addition to the amount of damage (if any) thereby caused to such grass verge.

(3) The powers conferred by this section shall not be exercised in relation to any grass verge laid out under section 10 (Trees, grass verges and gardens) of this Act and maintained in an ornamental condition or mown.

(4) The powers conferred by this section shall not be exercised in relation to any trunk road without the consent of the Minister of Transport.

12.—(1) Where in pursuance of the Housing Act, 1957, any Verges, etc., grass verge, garden or space is provided by a local authority and of housing maintained in an ornamental condition or mown, they may by estates. notice prohibit persons from causing or permitting vehicles to enter upon any such grass verge, garden or space.

(2) Any such notice as is referred to in the preceding subsection shall be conspicuously posted on or in proximity to the grass verge, garden or space to which it relates and if any person contravenes a notice so posted (except in a case of emergency) he shall be liable for every such offence on the first occasion to a fine not exceeding twenty shillings and on the second or any subsequent occasion to a fine not exceeding five pounds.

(3) The powers of this section shall not be exercisable in relation to any grass verge, garden or space which forms part of a highway maintainable at the public expense.

13.—(1) Where for the convenience of persons using a trunk Provision of road or county road it appears to the Council to be necessary parking places to provide parking places for vehicles, they shall have for such on trunk roads and county purpose the powers of a local authority under section 81 of the roads.

PART III
—cont.

Road Traffic Act, 1960, to provide, in the county, parking places (other than underground parking places), and the said powers as extended to the Council by virtue of this section shall include powers to provide and maintain any camping places, refreshment rooms, office accommodation, shelters, cloakrooms or other conveniences for use in connection with any such parking place.

(2) Accordingly, the said section 81 in its application to the Council shall have effect as if—

- (a) references to a parking place were construed as including references to any such camping places, refreshment rooms, office accommodation, shelters, cloakrooms or other conveniences;
- (b) in subsection (1) for the words “purpose of relieving or preventing congestion of traffic” there were substituted the words “convenience of persons using a trunk road or county road within the meaning of the Highways Act, 1959” and the words “whether above or below ground and” were omitted;
- (c) in subsection (16) the words from “and for the purposes of this section” to the end of the subsection were omitted;
- (d) for subsection (17) there were substituted the following subsection:—

“(17) Any power conferred by this section to provide a parking place includes power to maintain it and any buildings comprised in it”; and
- (e) subsections (9) and (18) were omitted;

and subsections (2) to (7) and (12) and (15) of section 11 and section 14 of the Road Traffic and Roads Improvement Act, 1960, and section 30 of the Road Traffic Act, 1962, shall have effect as if the Council were a local authority within the meaning of the said section 81.

(3) Subsections (1) to (3) and (7) of section 13 of the Road Traffic and Roads Improvement Act, 1960, and section 34 of the Road Traffic Act, 1962, so far as it amends section 81 of the Road Traffic Act, 1960, shall not apply to the Council, and in the rest of the said section 13 references to the said section 81 shall be construed as references to that section as applied by virtue of this section.

(4) Where the Council propose to acquire any land or to utilise any land appropriated by them for the purposes of subsection (1) of this section, they shall, before carrying the proposal into effect—

- (a) cause notice of the proposal (specifying the land to which it relates and notifying the period, which shall not be less than twenty-eight days, within which any representations relating to the proposal shall be sent in writing to the Council) to be published in at least one newspaper circulating in the area in which the land is situate and a copy of the notice to be posted for not less than fourteen days on, or adjacent to, the land; and
- (b) consider any representations which are sent to them in writing within the time fixed in that behalf and give notice of their decision on the representations to the person by whom they were made.

(5) The Council shall not themselves provide or sell refreshments at any refreshment room or other premises provided for the purposes of subsection (1) of this section, and any refreshment room or other premises so provided shall be disqualified for receiving a licence granted by licensing justices under the Licensing Acts, 1953 to 1961, other than a restaurant licence within the meaning of section 1 of the Licensing Act, 1961.

14.—(1) The provisions of subsection (2) of section 87 of the Act of 1936 shall extend so as to authorise the Council to provide public sanitary conveniences in, on or under any land which is adjacent to but which does not form part of a county road or a trunk road in the county and the provisions of subsection (3) of that section shall apply accordingly:

Extension of
power to
provide public
conveniences.

Provided that the powers of this subsection shall not be exercised in relation to a trunk road or in relation to any land acquired by the Minister of Transport in connection with a trunk road under subsection (5) or subsection (6) of section 214 of the Act of 1959, or under section 215 of that Act, without the consent of the Minister of Transport.

(2) The Council may enter into an agreement—

- (a) with any person for the provision by him of any public sanitary conveniences which the Council have power to provide; and
- (b) with the owner and occupier of any such premises as are referred to in subsection (1) of section 89 of the Act of 1936 or the owner and occupier of any premises comprising a petroleum filling station as defined in the Petroleum (Consolidation) Act, 1928, for the provision

PART III
—cont.

by him, in addition to any sanitary conveniences provided for the use of persons employed at or frequenting such premises, of additional sanitary conveniences for the use of members of the public;

and any such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or expedient for the purposes of the agreement, including in particular but without prejudice to the generality of the foregoing, provision for—

- (i) a contribution, whether by way of a loan or otherwise, by the Council towards the reasonable expenses incurred by any person in providing and maintaining sanitary conveniences for the use of members of the public;
- (ii) the charges to be made to persons making use of any such conveniences, other than urinals;
- (iii) the regulation of the use of any such conveniences.

Power for rural district councils to contribute to cost of private street works.

15. A rural district council may at any time resolve to bear the whole or a portion of the expense of any street works in their district under the code of 1892, as defined in section 173 of the Act of 1959, and where a rural district council so resolve the liabilities of the owners of premises in respect of those expenses shall be treated as discharged, or as proportionately reduced, accordingly.

PART IV

PUBLIC SAFETY

Parts of buildings used for storage of inflammable substances.

16.—(1) A local authority may if they are of opinion that storage for the purposes of sale or trade of any substances to which this section applies in any part of a building in their district (in this section referred to as “the storage part of the building”) is in—

- (a) such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or
- (b) such manner as to be liable to cause fire or explosion;

by notice require the occupier of any part of that building to provide within such reasonable period as may be specified in the notice—

- (i) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;

- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(2) (a) An authorised officer of the local authority may, in respect of any premises which he has entered in pursuance of the powers conferred by section 287 of the Act of 1936, purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any kind of test of a sample taken by an authorised officer of the local authority by virtue of this section shall not be admissible as evidence in any legal proceedings under this section including an appeal under subsection (5) of this section unless the following requirements have been complied with: that is to say, the said officer shall, forthwith after taking the sample, notify to the occupier of the building his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(3) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building is unable to execute works for the purpose of complying with a requirement of the local authority under this section; or
- (b) considers that the owner of the building or any other person having an interest therein should contribute towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such requirement or, as the case may be, to direct the owner

PART IV
—cont.

of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) (a) If after the requirements of the local authority under subsection (1) of this section have been complied with and a certificate to that effect has been granted by the local authority any material extension or material structural alteration of the building to which the certificate relates is made the local authority may serve a further notice varying any requirement made under subsection (1) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the local authority shall amend the certificate or grant a new certificate in respect of the building but if anything required to be provided in accordance with a further notice served under this subsection is not provided within such reasonable time as may be specified in the further notice the local authority may cancel the certificate granted under this subsection in respect of the building.

(5) (a) Any person aggrieved by a requirement of the local authority under subsection (1) of this section, or by a variation of a requirement under subsection (4) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements of the notice.

(b) Any person aggrieved by the refusal of the local authority to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (4) of this section may appeal to a magistrates' court.

(6) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(7) This section applies to—

- (a) any building which is used, or intended to be used, partly for the storage for the purposes of sale or trade of any

substance to which this section applies and partly as a habitable room or a place in which any person works, if the part used as a habitable room or a place in which a person works communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;

- (b) (i) any substance which is gaseous at a temperature of 33 degrees Fahrenheit at atmospheric pressure and which is inflammable; and
- (ii) any other substance which when tested by a method approved by the Secretary of State gives off an inflammable vapour at a temperature of less than 150 degrees Fahrenheit:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act, 1928, apply; or
- (ii) any substance which does not, when tested by a method approved by the Secretary of State, give off an inflammable vapour at a temperature of less than 80 degrees Fahrenheit and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or
- (iii) any substance which does not, when tested by a method approved by the Secretary of State, give off an inflammable vapour at a temperature of less than 80 degrees Fahrenheit and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(8) In this section “building” where used in relation to the storage of substances therein includes the curtilage of the building.

(9) A local authority shall consult with the fire authority before serving a notice under subsection (1) of this section.

(10) Nothing in this section shall apply to premises which are subject to the Factories Act, 1961, or to the Offices, Shops and Railway Premises Act, 1963, or regulations made under either of those Acts or to premises of the National Coal Board used for coal industry activities or transferred allied activities as respectively defined in section 63 of the Coal Industry Nationalisation Act, 1946.

PART IV
—cont.Fire
precautions
in certain
large
buildings.

17.—(1) Where plans of a building or of an alteration or extension of a building are, in accordance with building byelaws, deposited with a local authority, and the building or, as the case may be, the building as altered or extended, will be a building to which this section applies, the local authority shall reject the plans unless they show that the building or, as the case may be, the building as altered or extended, will be—

- (i) provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (ii) fitted with automatic fire alarms and a fire extinguishing system, or with such alarms or such system to the satisfaction of the local authority after consultation with the fire authority, or divided by fire division walls constructed to the satisfaction of the local authority after such consultation, in such a manner that no division of a building or part of a building is of a cubic extent greater than two hundred and fifty thousand cubic feet:

Provided that—

- (a) nothing in paragraph (i) of this subsection shall apply to a factory to which section 40 of the Factories Act, 1961, applies, to buildings to which section 59 of the Act of 1936 applies or to premises to which the Offices, Shops and Railway Premises Act, 1963, applies;
- (b) nothing in paragraph (ii) of this subsection so far as it relates to the provision of fire alarms shall apply to a factory to which subsection (7) of section 48 of the said Act of 1961 applies or to premises to which section 34 of the said Act of 1963 applies, nor so far as it relates to the provision of a fire extinguishing system shall the said paragraph apply to a factory to which subsection (1) of section 51 of the said Act of 1961 applies or to premises to which the said Act of 1963 applies.

(2) Before approving or rejecting any plans to which the foregoing subsection applies the local authority with whom the plans have been deposited shall consult the fire authority.

(3) The person proposing to erect, alter or extend or cause to be erected, altered or extended any building to which this section applies shall, when submitting plans and particulars in accordance with building byelaws, deposit with the local authority particulars showing how it is proposed to comply with the requirements of paragraphs (i) and (ii) of subsection (1) of this section.

A local authority at any time within a period of two months after the deposit of the particulars, irrespective of any decision under building byelaws—

- (a) may refuse to approve them; or

- (b) may approve them subject to such conditions (if any) as after consultation with the fire authority they think fit;

PART IV
—cont.

in either of which cases they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions. If within that period the local authority fail to give such notice they shall be deemed to have approved the said particulars.

(4) If any building to which this section applies contravenes any of the requirements of paragraphs (i) or (ii) of subsection (1) of this section the local authority, without prejudice to their right to take proceedings for penalties in respect of the contravention, may by notice require the person erecting, altering or extending or causing to be erected, altered or extended the building, either to pull down and remove it or if he so elects to effect such alterations therein as may be necessary in order to comply with the said requirements.

(5) (a) A person who erects or causes to be erected, altered or extended a building in contravention of any of the provisions of this section shall be guilty of an offence under this section.

(b) A person who commits an offence under this section shall on summary conviction be liable to a fine not exceeding ten pounds and to a daily fine not exceeding five pounds.

(6) Any person aggrieved by—

- (a) a requirement of a local authority; or
- (b) a refusal by a local authority to approve particulars; or
- (c) a condition subject to which approval of particulars is given by a local authority;

under subsection (1) or subsection (3) of this section may appeal to a magistrates' court and on any such appeal the court may confirm, reverse or vary such requirement, refusal or condition.

(7) This section applies to any building or proposed building in the county of a cubic content exceeding two hundred and fifty thousand cubic feet being a building—

- (a) of the warehouse class; or
- (b) used for the purpose of trade or manufacture;

but does not apply to any building—

- (i) in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or
- (ii) exempted from the provisions of Part II of the Act of 1936 with respect to building byelaws by section 71 (c) of that Act.

PART IV
—cont.

(8) Any reference in this section to plans deposited in accordance with building byelaws shall be construed as including a reference to any sections, specifications and written particulars deposited with the plans in accordance with the byelaws or this section.

Firemen's
switches for
luminous
tube signs.

18.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding six hundred and fifty volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the appointed day apparatus to which this section applies shall be provided with a cut-off switch on the low-voltage side of the transformer; and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the fire authority may impose, to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to install apparatus to which this section applies, the consumer shall give notice to the fire authority showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the appointed day, the consumer shall, not less than fourteen days before the appointed day, give notice to the fire authority—

- (a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;
- (b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the fire authority as required by subsection (3) or subsection (4) of this section the proposed, or, as the case may be, actual, position, colouring or marking of the switch shall be deemed to satisfy the requirements of the fire authority unless, within ten days from the date of the service of the notice, if the notice is served under subsection (3) of this section or within twenty-one days from the date of the service of the notice, if the notice is served under subsection (4) of this section, the fire authority have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the fire authority.

(7) A person aggrieved by a counter-notice served by the fire authority under subsection (5) of this section may appeal to a magistrates' court; and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsections (3), (4) or (12) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding five pounds and, in the case of an offence under subsection (8) of this section, to a daily fine not exceeding two pounds.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations, 1937, or any regulations that may be made under section 60 of the Electricity Act, 1947.

(12) This section shall not apply to apparatus installed on or in premises or any part of premises in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

Provided that where any luminous tube sign to which, but for this subsection, subsection (1) of this section would apply, is proposed to be fitted on or in any such premises, the owner or occupier thereof shall, before such apparatus is fitted, give notice to the fire authority informing them of the position in which it is proposed to place the cut-off switch.

(13) In their application to this section the provisions of section 5 (The appointed day) of this Act shall have effect with the substitution of "Council" for "local authority" and "county" for "district".

PART V

CULTURAL ACTIVITIES

19.—(1) It shall be lawful for the Council or a local authority— Provision of lectures, etc.

- (a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Council or the local authority, as the case may be, think fit and to let such rooms and to make reasonable charges for admission to such lectures; and

PART V
—cont.

- (b) to provide suitable rooms for art exhibitions and to provide or permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provided that—

- (i) the sum to be expended by the Council or the local authority, as the case may be, in any one financial year on the provision of lectures; and
(ii) the sum to be expended by the Council or the local authority, as the case may be, in any one financial year on the provision of art exhibitions;

shall not in either case exceed the equivalent of two-thirds of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act, 1925, in addition to any moneys received by the Council or the local authority, as the case may be, under the provisions of this section.

(2) The Council or the local authority, as the case may be, may use or allow to be used or let any part of any public library provided by them, and not at the time required for the purpose of a library, for public and other meetings and for lectures, exhibitions and performances for or in connection with the advancement of art, education, drama, science, music or literature.

(3) The Council or the local authority, as the case may be, may provide and sell or authorise the provision and sale of programmes of any lectures, exhibitions or performances given in pursuance of this section.

(4) Nothing in this section shall be taken to dispense with the consent of a Minister of the Crown to any appropriation, lease or other disposition of any lands of the Council or the local authority, as the case may be, in any case in which such consent would have been required if this section had not been enacted.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

Publication
of bulletins,
etc.

20.—(1) In connection with their powers under section 19 (Provision of lectures, etc.) of this Act the Council or a local authority may publish and sell or dispose of bulletins, journals, periodicals and leaflets and documents of historical or literary interest having a local connection or relating to the functions of the Council or the local authority, as the case may be.

(2) Nothing in this section shall affect the rights of any person under the law for the time being relating to copyright.

PART VI

FINANCE

21.—(1) The Council may borrow such sums as may be necessary for any of the purposes of this Act and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part. Power to borrow.

(2) It shall not be lawful to exercise the powers of borrowing conferred by the foregoing subsection except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

22. Section 1 of the Local Authorities (Expenses) Act, 1956, shall in relation to the Council have effect as if in paragraph (b) thereof after the words “distinguished persons” there were inserted the words “residing in or”. Extension of section 1 of Local Authorities (Expenses) Act, 1956.

23.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and those provisions shall accordingly have effect with any necessary modifications, including the substitution of “local authority” for “Council”. Application of certain provisions of Part VI to local authorities.

(2) The provisions hereinbefore referred to are—

Section 21 (Power to borrow);

Section 22 (Extension of section 1 of Local Authorities (Expenses) Act, 1956).

PART VII

MISCELLANEOUS

24.—(1) The chapel shall by virtue of this Act be free from the act or consequences of the consecration thereof and from all trusts, uses, obligations, disabilities and restrictions whatsoever attributable to such consecration heretofore attaching thereto under ecclesiastical law. Chapel freed from consequences of consecration.

(2) In this section “the chapel” means the Church of England chapel and ancillary buildings in the Stottercliffe Cemetery, Penistone, in the county together with the land comprising the paths surrounding such chapel.

25.—(1) The Council may make arrangements for—

(a) providing persons to whom section 29 of the National Assistance Act, 1948, applies with meals and for providing aged persons with other domiciliary services in their own homes; Welfare of aged and handicapped persons.

PART VII
—cont.

(b) boarding out persons to whom paragraph (a) of subsection (1) of section 21 of the National Assistance Act, 1948, applies on such terms as to payment by the Council and otherwise as the Council may determine.

(2) In this section “ domiciliary service ” shall include—

(a) the installation of such safety equipment as may be necessary or desirable;

(b) the provision of such communications or emergency warning equipment as may be necessary or desirable.

(3) For the promotion of the welfare of aged persons and persons to whom the said section 29 applies the Council may—

(a) appoint, with or without remuneration, such officers, servants or other persons as may be necessary for the purpose of giving or supervising the giving of general assistance to aged persons and persons to whom the said section 29 applies in their own homes or elsewhere (in this section referred to as “ wardens ”);

(b) provide such accommodation for wardens as may be necessary;

(c) arrange for the provision of facilities for the laundering of articles belonging to or used by aged persons or persons to whom the said section 29 applies;

(d) arrange for the provision of telephonic or other electrical communication between the home of any aged person or person to whom the said section 29 applies and the accommodation of any warden or between any two or more of such homes;

(e) erect buildings and lay out gardens for the purpose of providing communal facilities for recreation.

(4) The Council may enter into an agreement with any local authority for the taking by them of any action which the Council have power to take by virtue of the provisions of the last foregoing subsection and any such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or expedient for the purposes of the agreement including in particular, but without prejudice to the generality of the foregoing, provision for the payment by the Council of the expenses incurred by a local authority under that subsection.

(5) The Council may recover from persons availing themselves of any service or facility provided under this section such charges, if any, as, having regard to the cost of the service or facility, the Council may determine, whether generally or in the circumstances of any particular case.

(6) This section shall apply to such aged persons and such persons to whom the said section 29 applies as are resident in the county.

26.—(1) The Council may provide and maintain or contribute to the cost of providing and maintaining recreational, social and welfare facilities for their employees. Recreational and other facilities for employees.

(2) For the purposes aforesaid, the Council may—

- (a) erect or maintain buildings;
- (b) make such charges as they think fit for the use of facilities provided under this section;
- (c) make regulations for the management of such premises.

(3) No power conferred upon the Council by this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held, managed or controlled by the Council without an order of the High Court or of the Charity Commissioners, or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Council) subject to which a gift or lease of any land or building has been accepted by or granted to the Council without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

27.—(1) As from the appointed day in any district dark smoke shall not be emitted from any industrial premises in that district, and if on any day dark smoke is so emitted, the occupier of the premises shall be guilty of an offence and shall be liable to a fine not exceeding one hundred pounds. Prohibition of dark smoke.

(2) This section shall not apply to—

- (a) dark smoke emitted from a chimney of any building or from a chimney to which section 1 of the Clean Air Act, 1956, applies by virtue of subsection (4) of that section;
- (b) dark smoke accidentally or inadvertently emitted if all practicable steps have been taken to prevent or minimise the emission of such smoke;

PART VII
—cont.

(c) premises controlled under the Alkali, &c., Works Regulation Act, 1906; and

(d) premises of the National Coal Board used for colliery production activities as defined in paragraph 2 of Schedule 1 to the Coal Industry Nationalisation Act, 1946.

(3) In this section—

“chimney” has the same meaning as in subsection (1) of section 34 of the Clean Air Act, 1956;

“dark smoke” has the same meaning as in subsection (2) of section 34 of the Clean Air Act, 1956;

“industrial premises” means premises used or designed for use for, or held in connection with, the carrying on of any process for, or incidental to, any of the following purposes, namely:—

(a) the making of any article or part of any article; or

(b) the altering, repairing, ornamenting, finishing, cleaning, washing, freezing, packing, sorting or canning or adapting for sale or breaking up or demolition of any article; or

(c) without prejudice to the foregoing paragraphs, the getting, dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine;

being a process carried on in the course of trade or business; and for the purposes of this definition, “article” means an article of any description including a ship or vessel.

Delegation of
powers to
sub-
committees.

28.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may, subject to any direction of the Council, appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit, and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

(2) Except in pursuance of powers conferred by any enactment a majority of the members of any such sub-committee shall be members of the Council.

(3) The powers of this section shall be in addition to the powers of any committee of the Council to appoint a sub-committee under any other enactment.

Removal of
vehicles.

29.—(1) If a vehicle is left in the county elsewhere than on a road or in an off-street parking-place provided under section 81 of the Road Traffic Act, 1960, the Council may, with the consent

of the occupier of the land on which the vehicle is left and after giving not less than seven days' notice to the owner of the vehicle, cause it to be removed:

Provided that, where the vehicle appears to the Council to be abandoned—

- (a) the Council may cause it to be removed without the consent of the occupier of the land if they are unable after reasonable inquiry to ascertain his name and address; and
- (b) the Council may cause the vehicle to be removed without notice to the owner thereof if they are unable after reasonable inquiry to ascertain his name and address.

(2) The provisions of any regulations for the time being in force under section 43 of the Road Traffic Act, 1960, about the method of removing vehicles and their loads and arrangements for the safe custody of vehicles and their loads shall apply to vehicles removed under this section.

(3) Section 15 of the Road Traffic and Roads Improvement Act, 1960, and any order for the time being in force under that section shall apply to a vehicle removed under this section as if it had been removed from a road in pursuance of regulations under section 43 of the Road Traffic Act, 1960.

(4) For the purpose of the said section 15 and any such order as applied by the last preceding subsection "the appropriate authority" means the Council and any reference in regulations made under section 43 of the Road Traffic Act, 1960, to a charge to payment of which the Council are entitled under the said section 15 shall be construed accordingly.

(5) If it appears to the Council that a vehicle removed under this section has been abandoned the Council may sell or otherwise dispose of it subject to compliance with such regulations as are for the time being in force under section 43 of the Road Traffic Act, 1960, relating to the disposal of vehicles abandoned on roads; and the provisions of any regulations under that section relating to the proceeds of the sale of vehicles abandoned on roads and to the recoupment of costs incurred in connection with the disposal of such vehicles shall, with the necessary modifications, apply to the sale and disposal of vehicles under this subsection.

(6) In this section "owner" in relation to a vehicle which is the subject of a hiring agreement or hire-purchase agreement means the person in possession of the vehicle under that agreement and "road" means a highway or other road to which the public has access and includes bridges over which the road passes.

PART VII
—cont.

Provision of reciprocal services, etc., by Council and other bodies.

30.—(1) For the better performance of their respective powers or duties, provision may be made by agreement between two authorities to whom this section applies for the taking by either party thereto of action of the following kinds:—

- (a) the undertaking by one party for the other of any administrative, clerical, professional or technical services;
- (b) the use or maintenance by one party of any vehicle, plant, equipment or apparatus of the other party and if it appears convenient the services of any staff employed in connection therewith;
- (c) the carrying out of the works of maintenance by one party in connection with land or buildings for the maintenance of which the other is responsible:

Provided that no agreement shall be made under this section unless one of the parties thereto is an authority possessing powers or duties within the county.

(2) Where provision could be made either by an agreement under this section or by virtue of the powers conferred by section 271 of the Act of 1936 it shall be made under the said section 271 and not under this section.

(3) In its application to the use of any mechanical road-making equipment or plant the provisions of subsection (1) of this section shall extend to enable the Council or a local authority to let for hire such equipment or plant to any authority to whom this section applies or any person carrying out work for or on behalf of the Council or a local authority.

(4) This section applies to the Council, the Lancashire River Board, the Mersey River Board, the Trent River Board, the Yorkshire Ouse River Board, a police authority, a local authority, the court of quarter sessions for the county, the council of an administrative county and the council of a county borough, and in its application to the Council extends so as to authorise the Council to enter into agreements with any voluntary organisation in receipt of a grant lawfully made by the Council within twelve months of the exercise of the powers of this section and with the council of any university for the taking by the Council of action of any of the kinds mentioned in subsection (1) of this section.

Extension of power to maintain burial grounds.

31.—(1) The powers of a burial authority in the county in relation to a burial ground maintainable by them shall include power—

- (a) to put, and keep, in order any tombstone or memorial therein;
- (b) to level any grave therein;
- (c) to remove any tombstone or memorial on any grave therein, or any railings surrounding any grave therein, or any such tombstone or memorial;
- (d) to alter the position of any such tombstone, memorial or railings.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the burial authority shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in their area with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the burial authority's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the burial authority will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service, whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the burial authority before the date specified under paragraph (b), of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister, unless the notice is withdrawn.

(5) The burial authority may put to such use as they think appropriate, or destroy, any tombstone, memorial or railings removed under this section, unless it or they is or are claimed and removed within three months from the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a tombstone is removed under this section, the burial authority may erect at their own expense, in substitution, a tombstone of a value not exceeding twenty-five pounds.

PART VII
—cont.

(7) The burial authority shall cause a record to be made of each tombstone or memorial taken from the burial ground under this section containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the tombstone or memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar-General.

(8) Nothing in the foregoing provisions of this section shall relieve the burial authority from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the burial authority obtain such a faculty or licence and subsection (5) thereof shall not have effect in relation to any tombstone, memorial or railings for whose removal such a faculty or licence was obtained.

(9) In this section—

“ burial ground ” includes a cemetery;

“ grave ” includes a grave space;

“ tombstone ” includes a kerb.

Power to
require
information
as to
ownership
of premises.

32.—(1) The Council or a local authority may for the purpose of enabling them to perform any of their functions under—

(a) any enactment in force at the passing of this Act which authorises the Council or a local authority, as the case may be, to acquire land compulsorily;

(b) any enactment mentioned in Schedule 1 to this Act; and

(c) any local enactment in force at the passing of this Act which authorises the Council or a local authority, as the case may be, to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Council or a local authority, as the case may be, to execute works on lands or premises within the county or the district, as the case may be;

require—

(i) the occupier and any person having an interest in any premises in the county or the district, as the case may

be, and any person who either directly or indirectly receives rent in respect of such premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder, mortgagee, lessee or otherwise or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and

- (ii) any person who has sold or otherwise disposed of, leased or let any premises in the county or the district, as the case may be, to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who having been required by the Council or a local authority, as the case may be, in pursuance of this section to give to them any information, fails to give that information or knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding five pounds.

(3) For the purposes of this section the expression “interest” includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

(4) The provisions of any of the enactments referred to in paragraph (a) of subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Council or a local authority, as the case may be, in so far as they relate to the same subject-matter as this section.

33.—(1) In this section—

the expression “lost property” means any property coming into the custody of a local authority after being left on or in any premises occupied by the local authority to which the public have access; and

Disposal of
lost and
uncollected
property.

the expression “uncollected property” means any property deposited in any cloakroom or parcels’ store provided by a local authority for the use of the public or any containers deposited in any market storeroom provided by a local authority in which there is exhibited a notice containing a statement to the effect of subsections (2) and (3) of this section.

(2) Where any lost or uncollected property is contained in a package, bag or other receptacle, the local authority may cause such receptacle to be opened and the contents examined, if they

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—cont.

deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(3) If any lost or uncollected property within three months of coming into the custody of the local authority be not proved to the reasonable satisfaction of the local authority to belong to any claimant, it shall thereupon vest in the local authority:

Provided that any lost or uncollected property which is of a perishable nature and any lost property the custody of which involves unreasonable expense or inconvenience may, notwithstanding that it has not vested in the local authority under this section, be disposed of at such time and in such manner as the local authority may think fit, and, if it is sold, the proceeds of sale shall vest in the local authority at the expiration of three months from the date on which the property came into their custody.

(4) Where any lost property becomes vested in the local authority in pursuance of this section, the local authority may, if they think fit, deliver to the person, whether an employee of the local authority or not, who placed the lost property in the custody of the local authority, the whole or any part of such property or of the estimated value thereof in cash.

(5) This section shall, in the case of uncollected property placed in the custody of the local authority on express terms inconsistent with the rights of the local authority under this section, have effect subject to those terms.

Control of
local
authorities'
refuse tips.

34. The prohibition on the sorting over or disturbing of material in subsection (3) of section 76 of the Act of 1936 shall apply in respect of material deposited in any place in their district used by a local authority for the deposit of refuse whether provided by the local authority or not.

Repair of
walls, etc., of
yards.

35.—(1) If it appears to a local authority that any party or boundary wall of any court, courtyard or yard attached to or forming part of any house in their district or the fence or door of any such court, courtyard or yard—

(a) has collapsed or been pulled down; or

(b) is in danger of collapsing; or

(c) is in such a state of disrepair as to be a source of serious inconvenience to the inhabitants of the house or to the public;

the local authority may by notice require the owner or occupier of the house to carry out such works (including the rebuilding, reinstatement, removal or repair of any such wall, fence or door) as are reasonably necessary.

PART VII
—cont.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

36.—(1) Where an occupied house in a district has ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the absence or defective state of a supply pipe (not being a supply pipe which is laid in a highway) or the cutting off of the supply of water through that pipe or the absence or defective state of any fittings, the local authority may, without prejudice to any action or proceedings which they may take under any other enactment, repair or renew the pipe or execute such works and provide or repair such fittings and do such other things (including the making of any payment) as they may consider necessary to secure that the supply of water to the house is restored, and may recover the expenses reasonably incurred by them in so doing from the owner of the house.

Supply of
water to
premises
where supply
cut off.

(2) In any proceedings for the recovery of expenses under the preceding subsection the court may inquire whether the whole or any part of the expenses should instead of being borne by the person from whom they are sought to be recovered be borne by the occupier of the premises in respect of which they were incurred and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne or as to the apportionment between any such persons of their liability to bear the expenses:

Provided that the court shall not under this subsection order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings, unless the court is satisfied that that other person at the instance of the defendant has had due notice of the proceedings and an opportunity of being heard.

(3) The powers and functions of the local authority under the foregoing provisions of this section may be exercised by the medical officer of health or the public health inspector of the district.

(4) The local authority may if they think fit themselves bear the whole or any part of any expenses recoverable by the local authority under this section.

PART VII
—cont.

(5) The powers conferred by this section shall not be exercisable in relation to any house without the consent of the statutory water undertakers concerned (which consent shall not be unreasonably withheld) and in giving their consent the statutory water undertakers—

- (a) may attach thereto such reasonable conditions as they think fit, including, where the supply of water to an occupied house has been cut off by the statutory water undertakers in exercise of their statutory powers, conditions to secure that the supply to that house is not restored under the powers of this section unless the local authority pay to the statutory water undertakers any sum due to them in respect of the supply of water to that house and any expenses reasonably incurred by them in cutting off the supply; and
- (b) may without prejudice to any action or proceedings which they may take under any other enactment elect to carry out on behalf of the local authority any repair, renewal or other works proposed by the local authority, in which case the expenses reasonably incurred by the statutory water undertakers in so doing shall be repaid to them by the local authority.

(6) Any difference which may arise between any statutory water undertakers and a local authority under the last foregoing subsection (other than a difference as to the meaning or construction of the said subsection) shall be referred to and determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, by the Minister.

Amendment
of section 21
of West
Riding County
Council
(General
Powers) Act,
1951.

37. Section 21 (Public seats in streets) of the West Riding County Council (General Powers) Act, 1951, shall have effect as if—

(a) in subsection (1) thereof—

(i) the words “or any parish council” were omitted;

(ii) after the word “thereof” there were inserted the words “or on any land abutting on any such street”;

(iii) after the word “public” there were inserted the words—

“Provided that—

(a) no seat shall be provided on any land or premises not forming part of a street, or in a position obstructing or interfering with any existing access to any such land

or premises, except with the consent of the owner and the occupier of the land or premises; and

PART VII
—cont.

- (b) nothing in this section shall relieve the Council or any person acting with the consent of the highway authority from liability for damage caused by them or him to any apparatus as defined in paragraph (1) of section 45 (For protection of certain statutory undertakers) of the West Riding County Council (General Powers) Act, 1964, in the exercise of the powers of this section, and those powers shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any such apparatus.”;

(b) subsection (2) thereof were omitted.

38.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section, shall apply to a local authority, and those provisions shall accordingly have effect with any necessary modifications including the substitution of “local authority” for “Council” and “district” for “county”. Application of certain provisions of Part VII to local authorities.

(2) The provisions hereinbefore referred to are—

Section 26 (Recreational and other facilities for employees);

Section 28 (Delegation of powers to sub-committees);

Section 29 (Removal of vehicles).

PART VIII

GENERAL

39.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purposes of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

40. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party Restriction of right to prosecute.

PART VIII
—cont.

aggrieved or the Council or the local authority or, in the case of an offence created by or under section 10 (Trees, grass verges and gardens), section 11 (Prohibition of vehicles on grass verges) or section 12 (Verges, etc., of housing estates) of this Act, a constable, as the case may be.

Appeals.

41.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a magistrates' court under any enactment in that Act, and section 301 and section 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Council or a highway authority or local authority against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council, highway authority or local authority as the case may be themselves execute the work or take the action.

Application of
general
provisions of
Act of 1936.

42.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 2 to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to Part III (Highways), Part IV (Public safety) and section 27 (Prohibition of dark smoke), section 35 (Repair of walls, etc., of yards) and section 36 (Supply of water to premises where supply cut off) of this Act.

Protection of
members and
officers from
personal
liability.

43. Section 265 of the Public Health Act, 1875, shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Repeals.

44. The Acts specified in Schedule 3 to this Act are hereby repealed to the extent specified in that schedule:

Provided that any byelaws made by a local authority under an enactment repealed by this section shall continue in force unless revoked by the local authority.

45. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the authority and the undertakers concerned, apply and have effect:—

PART VIII
—cont.

For protection of certain statutory undertakers.

(1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Central Electricity Generating Board, the North Eastern Electricity Board, the North Western Electricity Board or the Yorkshire Electricity Board;

(b) mains, pipes or other apparatus belonging to or maintained by the East Midlands Gas Board, the North Eastern Gas Board, the North Western Gas Board or any undertakers who are statutory water undertakers;

and includes any works constructed for the lodging therein of apparatus;

“ the authority ” means the Council, a local authority, a parish council or the highway authority as the case may be;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the undertakers ” means—

the Central Electricity Generating Board;

the East Midlands Gas Board;

the North Eastern Electricity Board;

the North Eastern Gas Board;

the North Western Electricity Board;

the North Western Gas Board;

the Yorkshire Electricity Board;

the statutory water undertakers who are authorised to supply water in any part of the county;

or any of them, as the case may be:

(2) Nothing in the following sections of this Act shall relieve the authority or any person acting by the requirement or with the consent of the authority from liability for damage caused by them or him to any apparatus in the exercise of the powers of the said sections and the said powers shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any apparatus:—

Section 10 (Trees, grass verges and gardens);

PART VIII
—cont.

Section 13 (Provision of parking places on trunk roads and county roads);

Section 14 (Extension of power to provide public conveniences):

- (3) Nothing in section 10 (Trees, grass verges and gardens) or section 12 (Verges, etc., of housing estates) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge, garden or space:

Provided that in exercising such rights the undertakers shall not cause or permit, except in the case of necessity, vehicles to enter upon any such verge or space which is maintained in an ornamental condition or mown or any garden:

- (4) Nothing in section 16 (Parts of buildings used for storage of inflammable substances) of this Act shall apply to any building or part of a building by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for or in connection with the supply of gas:
- (5) (a) Any difference which may arise between the authority and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, to be appointed on the application of any party (after notice in writing to the other party or parties) by the President of the Institution of Civil Engineers;
- (b) In determining any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus and may, if he thinks fit, require the authority to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

For protection of
Commonwealth War
Graves
Commission.

46.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

- (2) In relation to any burial ground to which the provisions of section 31 (Extension of power to maintain burial grounds)

of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947 the burial authority shall—

- (a) not later than the date upon which such notice is first published in a newspaper circulating in their area serve upon the Commission a copy of any notice which the burial authority are required to publish pursuant to the said section 31;
- (b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 31;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

(3) The burial authority shall not in pursuance of the powers of the said section 31 remove any tombstone or other memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty of a consistory court after prior notification to the Commission of the application for the licence or faculty;
- (c) that in the case of any tombstone placed or erected by the Commission over any such grave such tombstone shall be removed only in accordance with such arrangements and in such manner including disposal of the tombstone as shall be agreed in writing between the burial authority and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister under subsection (4) of the said section 31 the burial authority shall, not later than the date on which the matter is referred to the Minister, inform the Commission in writing of such reference and the Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Minister.

PART VIII
—cont.
Crown rights.

47.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Council or any local authority to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Council or any local authority—

- (a) to carry out code-regulated works within the meaning of the Public Utilities Street Works Act, 1950, in any highway vested in or maintained by the Minister of Transport; or
- (b) to carry out any works by reason only that such works involve or are likely to involve an alteration in any telegraphic line of the Postmaster General in relation to which paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878, apply.

Saving rights
of Duchy of
Lancaster.

48. In particular and without prejudice to the general law concerning the applicability of statutes to the Duchy of Lancaster, nothing in this Act contained shall extend or operate to authorise the Council to take, use, enter upon or in any manner interfere with any land, soil, water or any manorial rights or any other rights of whatsoever description belonging to Her Majesty in right of Her Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said Duchy first had and obtained (which consent may be given either unconditionally or subject to such conditions and upon such terms as the said Chancellor shall deem necessary or appropriate) or take away, prejudice or diminish any estate, right, privilege, power or authority vested in or enjoyed or exercisable by Her Majesty, Her Heirs and Successors in right of Her said Duchy.

Costs of Act.

49. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of the county fund.

SCHEDULES

SCHEDULE 1

Section 32.

ENACTMENTS MENTIONED IN SECTION 32

Public Health Act, 1875.
Public Health Acts Amendment Act, 1890.
Public Health Acts Amendment Act, 1907.
Public Health Act, 1925.
Land Drainage Act, 1930.
Public Health Act, 1936.
Housing Act, 1957.
Public Health Act, 1961.
Land Drainage Act, 1961.

Section 42.

SCHEDULE 2

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of “ provide ”.
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PARTS III AND IV AND SECTIONS 27, 35 AND 36
OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

SCHEDULE 3

Section 44.

REPEALS

Act	Section	Marginal note	Extent of repeal
The West Riding County Council (General Powers) Act, 1948	10	Prohibition of vehicles on grass verges &c.	The whole section.
	16	Urgent repairs of private streets	The whole section.
	17	As to evasion by owners of private street works ex- penses	The whole section.
	52	Payment of expenses of public entertainments, &c.	The words " and in the reception and entertainment of distinguished per- sons residing in or visiting the county ".
The West Riding County Council (General Powers) Act, 1951	16	Variation of width of carriage- ways and footways	The whole section.
	31	New building over-reaching adjoining chimneys	The whole section.
	32	Cellars and rooms below sub- soil water level	The whole section.
	34	Ruinous and dilapidated buildings and neglected sites	The whole section.
	41	Fencing of forecourts ...	The whole section.
	45	Urgent repairs of private streets	In subsection (1), the proviso.
	46	Provision of bins for litter ...	The whole section.
	47	Attachment of street lamps brackets &c.	The whole section.
	49	Separate sewers for foul water and surface water	The whole section.
	50	Penalty for improper con- struction or repair of water- closet &c.	The whole section.
	51	Recovery of expenses of sewerage prospective street	The whole section.
	52	Prevention of evasion of lia- bilities under last preceding section	The whole section.
	53	Summary power to remedy stopped-up drains &c.	The whole section

SCH. 3
—cont.

Act	Section	Marginal note	Extent of repeal
The West Riding County Council (General Powers) Act, 1951— <i>cont.</i>	54	Delegation of power to examine and test drains &c.	The whole section.
	55	Power to repair drains and private sewers	The whole section.
	64	Information to be furnished by occupier in case of noti- fiable disease	The whole section.
	68	Entry into premises in case of notifiable disease	The whole section.
	69	Provisions as to appeals against notices relating to the provision of dustbins	The whole section.
	72	Prohibition of sale of ver- minous articles	The whole section.
	79	Power to let parks &c. for games	The whole section.
	82	Extension of power to main- tain burial grounds	The whole section.
	84	Barriers in streets	The whole section.
	90	Byelaws as to pleasure fairs and roller-skating rinks	The whole section.
	108	Application of certain pro- visions of Part XIII to local authorities	The words “Sec- tion 100 (Pay- ments due to deceased em- ployees);”.
	Third Schedule	—	The whole schedule.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 19.
Public Health Act, 1875	38 & 39 Vict. c. 55.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Public Health Acts Amendment Act, 1890	53 & 54 Vict. c. 59.
Burial Act, 1900	63 & 64 Vict. c. 15.
Alkali, &c., Works Regulation Act, 1906	6 Edw. 7 c. 14.
Public Health Acts Amendment Act, 1907	7 Edw. 7 c. 30.
Roads Improvement Act, 1925	15 & 16 Geo. 5 c. 68.
Public Health Act, 1925	15 & 16 Geo. 5 c. 71.
Rating and Valuation Act, 1925	15 & 16 Geo. 5 c. 90.
Petroleum (Consolidation) Act, 1928 ...	18 & 19 Geo. 5 c. 32.
Land Drainage Act, 1930	20 & 21 Geo. 5 c. 44.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Water Act, 1945	8 & 9 Geo. 6 c. 42.
Ministers of the Crown (Transfer of Functions) Act, 1946	9 & 10 Geo. 6 c. 31.
Acquisition of Land (Authorisation Pro- cedure) Act, 1946	9 & 10 Geo. 6 c. 49.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Coal Industry Nationalisation Act, 1946	9 & 10 Geo. 6 c. 59.
Fire Services Act, 1947	10 & 11 Geo. 6 c. 41.
Electricity Act, 1947	10 & 11 Geo. 6 c. 54.
National Assistance Act, 1948	11 & 12 Geo. 6 c. 29.
West Riding County Council (General Powers) Act, 1948	11 & 12 Geo. 6 c. lii.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6 c. 42.
Public Utilities Street Works Act, 1950 ...	14 Geo. 6 c. 39.
West Riding County Council (General Powers) Act, 1951	14 & 15 Geo. 6 c. xliii.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Local Authorities (Expenses) Act, 1956 ...	4 & 5 Eliz. 2 c. 36.
Clean Air Act, 1956	4 & 5 Eliz. 2 c. 52.
Housing Act, 1957	5 & 6 Eliz. 2 c. 56.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.
Road Traffic Act, 1960	8 & 9 Eliz. 2 c. 16.
Road Traffic and Roads Improvement Act, 1960	8 & 9 Eliz. 2 c. 63.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.
Factories Act, 1961... ..	9 & 10 Eliz. 2 c. 34.
Land Drainage Act, 1961	9 & 10 Eliz. 2 c. 48.
Licensing Act, 1961	9 & 10 Eliz. 2 c. 61.
Public Health Act, 1961	9 & 10 Eliz. 2 c. 64.
Road Traffic Act, 1962	10 & 11 Eliz. 2 c. 59.
Offices, Shops and Railway Premises Act, 1963	1963 c. 41.

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